

16. **Investment on other stock ordered under particular circumstances.** — The Court [would, however, even before the recent Acts already referred to], under *special* circumstances [have invested] in other Government Stock than Consols. Thus, a testator gave his residuary estate to executors upon trust to pay the annual produce to A. for life in equal portions at *Lady-day* and *Michaelmas-day*, and after his decease in trust for other purposes. A motion was made that the executors might invest a sum in their hands in the Three per Cent. Consolidated Bank Annuities, but it was objected that the dividends of this stock were payable in January and July; whereas, if the money were laid out in the *Three per Cent. Reduced Annuities*, the dividends would be payable at the time directed by the testator; and Sir John Leach made the order accordingly (e).

* 17. **Whether trustees may invest on any other** [*315] **Government security.** — In the report of *Hancom v.*

Allen (a) it is said, "The trust money had been laid out by the trustees in *funds* which sunk in their value, without any *mala fides*; but the same not being laid out in *the fund* in which the Court directs trust money to be laid out, the trustees were ordered to account for the principal and pay it into the Bank, and then that it should be laid out in *Bank Three per Cent. Annuities*." It might be inferred from this statement, that, if a trustee before the late Acts had invested in any other Government Security than the Three per Cent. Consols, the Court would have held him accountable for any loss by a fall of the stock; but such a doctrine would have been extremely severe against trustees (b), and the case, as extracted from the Registrar's book, is no authority for any such proposition. Thomas Phillips, a trustee of 1500*l.*, instead of investing the money in a purchase of land and in the mean time on some sufficient security, as required by the

M. & Cr. 496, *per* Lord Cottenham;
Holland *v.* Hughes, 16 Ves. 114, *per*
Sir W. Grant; Moyle *v.* Moyle, 2 R.
& M. 716, *per* Lord Brougham; and
see Jackson *v.* Jackson, 1 Atk. 513.

(e) Caldecott *v.* Caldecott, 4 Mad.
189.

(a) 2 Dick. 498.

(b) See Angell *v.* Dawson, 3 Y. &
C. 316; *Ex parte* Projected Railway,
11 Jur. 160; Matthews *v.* Brise, 6
Beav. 239; Baud *v.* Fardell, 7 De G.
M. & G. 628.